

HOUSE No. 5429



MAURA T. HEALEY
GOVERNOR

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KIMBERLEY DRISCOLL
LIEUTENANT GOVERNOR

May 13, 2026

To the Honorable Senate and House of Representatives,

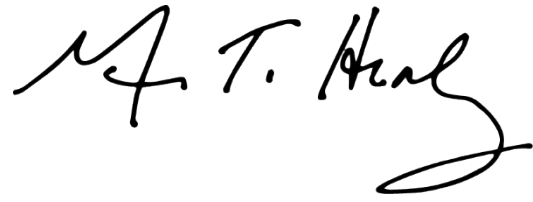
Pursuant to the provisions of Article II, Section 8, Paragraph 1, Clause (2) of the Amendments to the Constitution, as appearing in Article LXXXIX of said Amendments, I am filing for your consideration the attached legislation entitled “An Act providing injured on duty compensation to Chelmsford Firefighter Nicholas Spinale.”

Nicholas Spinale, an active-duty fire fighter for the Chelmsford Fire Department and a Support Branch staff member at the Massachusetts Firefighting Academy, was tragically injured on April 7, 2026, while supporting fire fighter training. The Academy is run by the Department of Fire Services (DFS), and trains over 13,000 fire fighters at every level of experience across the state each year. The Academy provides training at no cost to municipalities and relies on instructors and support staff, who, like Mr. Spinale, are active-duty or retired fire fighters. Mr. Spinale has performed critical, life-saving work in both roles and deserves our steadfast support as he recovers.

This legislation ensures that Mr. Spinale will receive full pay and benefits and maintain his full-time position with the Chelmsford Fire Department while he recovers from his injuries. All costs will be borne by the state.

Every day, fire fighters bravely step into dangerous situations to keep us safe. Academy staff are vital to the professional training and development that prepare them for these duties. Mr. Spinale exemplifies this courageous spirit. He deserves the support this legislation will provide as he recovers. I therefore urge your prompt consideration of this bill.

Respectfully submitted,

A handwritten signature in black ink, reading "M. T. Healey". The signature is fluid and cursive, with a large, sweeping loop at the end of the last name.

Maura T. Healey,
Governor

HOUSE No. 5429

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing injured on duty compensation to Chelmsford firefighter Nicholas Spinale.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to establish forthwith, injured in the performance of duty benefits for a certain employee of the Chelmsford fire department who is incapacitated as a result of a hazardous workplace injury, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, Nicholas
2 Spinale, a firefighter in the town of Chelmsford, shall be eligible for leave from the town without
3 loss of pay pursuant to section 111F of chapter 41 of the General Laws, retroactive to April 7,
4 2026, for the period during which he is incapacitated from duty as a Chelmsford firefighter due
5 to injuries sustained on April 7, 2026 while working for the department of fire services;
6 provided, that no such leave shall be granted for any period after a physician designated by the
7 commonwealth or the appointing authority for the town of Chelmsford determines that such
8 incapacity no longer exists; provided further, Nicholas Spinale shall not be required to waive the
9 provisions of chapter 152 of the General Laws; provided further, the benefits granted in this
10 section shall be reduced by the amount of workers' compensation received by Nicholas Spinale
11 under said chapter 152. Nicholas Spinale shall be eligible for such injury leave compensation

12 during the period of his incapacity until he is cleared to return to duty or until he reaches age 65
13 or otherwise retires, whichever occurs first. If such incapacity is deemed to be permanent,
14 Nicholas Spinale shall be eligible to apply for accidental disability retirement pursuant to section
15 7 of chapter 32 of the General Laws. The commonwealth, the town or Nicholas Spinale may file
16 the application for disability retirement.

17 SECTION 2. The commonwealth shall reimburse the town of Chelmsford for its
18 payment, pursuant to section 1 of this act, of injury leave compensation under section 111F of
19 chapter 41 of the General Laws and for all other costs including Nicholas Spinale's medically
20 necessary hospital, medical, surgical, chiropractic, nursing, pharmaceutical, prosthetic or related
21 expenses and medically necessary charges for chiropody (podiatry) incurred by the town
22 pursuant to this act, as the natural and proximate result of the injuries he sustained on April 7,
23 2026, while working for the department of fire services, retroactive to April 7, 2026.

24 SECTION 3. In the event the incapacity Nicholas Spinale suffered as a result of the
25 injuries he sustained on April 7, 2026 is deemed to be permanent, the amount of pension payable
26 to Nicholas Spinale shall be fixed annually at an amount equal to the rate of regular
27 compensation which would have been payable to him had he continued in service as a firefighter
28 at the grade held by him on the date of his disability and the annual amount of accidental
29 disability retirement annuity he would receive under Option A of the retirement allowances as
30 provided in section 12 of chapter 32 of the General Laws would apply regardless of which
31 retirement allowance option he chooses under said section 12. This increased accidental
32 disability retirement allowance shall end on the date Nicholas Spinale turns 65, at which time his
33 accidental disability retirement allowance shall revert to an amount equal to what he would be

34 eligible to receive under section 7 of said chapter 32. All amounts paid under this act shall be
35 nontaxable to the extent allowable pursuant to state and federal tax laws.

36 SECTION 4. If Nicholas Spinale retires as a result of permanent injuries incurred on
37 April 7, 2026, and he is married at the time of his retirement, if the death of Nicholas Spinale
38 occurs prior to the date he turns 65 and such spouse survives him, such surviving spouse shall
39 continue to receive the increased accidental disability retirement until the date he would have
40 turned 65, at which time such surviving spouse shall be eligible to receive the retirement
41 allowance provided for a surviving spouse pursuant to the provisions of chapter 32 of the
42 General Laws.

43 SECTION 5. This act shall take effect upon its passage.